

1988



REPORT ON CONGRESS

By Lane Kirkland

The 100th Congress will be remembered best for its willingness to stand up against the anti-labor legislative policies of the Reagan Administration. This centennial Congress enacted laws to help America's working families and laid a firm foundation for future action on unresolved issues.

The stage was set in 1987 when the Democrats regained control of the Senate. Working in tandem, House Speaker Jim Wright and Senate Majority Leader Robert C. Byrd forged a working majority of pro-labor Democrats and moderate Republicans.

A crucial battle in the 100th Congress was fought between Congress and the White House over plant closing protections. For over a decade the AFL-CIO had sought legislation that would require companies to provide advance notice of plant closings or mass layoffs to workers and their communities. A Senate provision, mandating that plants with 100 or more employees provide at least 60 days' notice, was added to the omnibus trade bill.

After a year of obstructionist tactics, President Reagan vetoed the entire trade package, citing the plant closing language as his primary objection. The AFL-CIO fought back by developing a grass-roots lobbying offensive intensified by a back-home, prime-

time media campaign. Although the veto was easily overridden in the House, the Senate fell a handful of votes short of the needed two-thirds margin.

With TV and radio carrying labor's message to the nation and union members back home continuing to barrage their legislators, national attention focused on the issue. Public opinion polls demonstrated that over 80 percent of the American people supported the plant closing provision. Labor's Congressional allies, led by Sen. Lloyd Bentsen, took advantage of this public pressure to pass a separate plant closing bill with veto-proof majorities in both the House and the Senate. Knowing that a second veto faced a certain override, President Reagan allowed the bill to become law without his signature.

With the plant closing issue successfully resolved, the Congress forged ahead on trade reform. Democrats pushed through legislation which at long last targeted habitual unfair trade practices by our foreign competitors and set sanctions against them. The landmark bill also defined the abuse of workers' rights abroad as an unfair trade practice, allocated funds for an ambitious dislocated worker retraining program and extended the existing trade adjustment assistance program.

On other workers' rights issues, Congress stepped in to stop employer abuse of so-called "lie detectors." Legislation was signed into law to ban their use as a pre-employment screening device, while on-the-job use of polygraphs was tightly restricted. Legislation to prevent unscrupulous employers from misusing federal bankruptcy law to deprive retirees of critical health and life-insurance benefits also was enacted. On a related issue, the nation's senior citizens and their families were protected from the financially ruinous effects of costly medical illness through a new catastrophic health care program.

The 100th Congress enacted landmark legislation in civil rights. It overrode President Reagan's veto of legislation to overturn the Supreme Court's 1984 *Grove City* decision. This high-court ruling had undermined 20 years of federal civil rights law by weakening sanctions against discrimination by educational institutions receiving federal funds. The new law reversed the Supreme Court's decision.

Determined to find a civil rights issue it could support to make Vice President George Bush look moderate, the Administration reversed gears and went along with Congressionally passed legislation to crack down on illegal discrimination in housing by adding effective remedies, penalties and enforcement mechanisms to the original 1968 Fair Housing law. The White House, however, continued its unrelenting opposition to anti-apartheid legislation and blocked efforts to strengthen economic sanctions against the racist South African government.

Senate filibusters and Presidential veto threats thwarted final action on a number of important pro-worker bills passed by the House.

A filibuster by Republican conservatives in the Senate blocked the high-risk notification bill. This job-safety initiative—the first considered by Congress in many years—would have set up a system to identify toxic workplace substances and notify those workers in danger of contracting occupational disease. Unfortunately, a majority of the Senate put the pleas of business lobbyists ahead of the health of American workers and failed to stop the filibuster after four attempts.

The same fate awaited building-trades workers as a filibuster threat by Senate Republican Minority Leader Bob Dole blocked legislation to safeguard their union contracts by outlawing the practice of "double breasted" contracting in the construction industry. Legislation to reform the Hatch Act—to restore full political rights to federal and postal workers—also fell victim to similar threats by North Carolina Senator Jesse Helms.

Another filibuster—this time by Senator Orrin G. Hatch—thwarted a bill to increase the minimum wage. Despite the best efforts of Senators Byrd and Kennedy, Republican conservatives talked to death efforts to increase the \$3.35 per hour minimum wage, last raised in 1981, by a meager \$1.20 by 1991.

On family issues, Senate conservatives, who so often pay homage to "family values," showed their true colors on measures aimed at helping middle-class Americans. Their filibuster tactics stopped a bill to provide working parents unpaid, job-protected leave to deal with personal or family medical problems, including the birth of a child. A second

bill, to make child care and related services more affordable and to improve the quality and quantity of child care facilities and personnel, was also derailed.

White House opposition stymied two other initiatives: bills to modernize the Davis-Bacon Act and a proposal to enforce labor protections for airline workers adversely affected by mergers. These pro-worker amendments were dropped by House and Senate conferees in the final stages of consideration of the measures to which they had been attached.

Overall, union members should be proud of the legislation enacted to protect workers, but the final chapter of the 100th Congress is an index of unfinished business for the Congress that will follow. Completed action on issues like minimum wage, the "double-breasting" bill, family and medical leave, child care, Hatch Act reform and high-risk notification all await the outcome of the 1988 elections. Clearly, the prognosis for these and other issues like overhaul of the Occupational Safety and Health Act (OSHA) will be enhanced if the nation elects a President and a Congress committed to the legislative aspirations of American workers and their families.

No matter what the political scenario in the years ahead, labor's successes will continue to depend upon the degree to which union members take advantage of their Constitutional right to "petition the Government for redress of grievances." To help our members do this effectively in the 101st Congress, the AFL-CIO will continue to develop new and effective grass-roots weapons, to help union members get involved and make their voices heard in the legislative process.

When union members write letters, send postcards, demonstrate and picket, or meet face-to-face with their elected officials to hold them accountable for their performance, labor's Capitol Hill lobbying efforts are strengthened.

To those union members who did get involved during 1987-88, we say thanks. In the final analysis, the most important legislative lesson from the centennial Congress is that grass-roots lobbying by the people—union members and their families—can make the difference.

Labor's 1988 report card on Congress tabulates the votes on major issues of concern to the AFL-CIO in the second session of the 100th Congress.

House members have been judged on 14 key issues—"R-right" or "W-wrong"—on the basis of the position the AFL-CIO took on the legislation. Senators have been rated on 14 key votes.

The tables also include the cumulative voting record and cumulative "right" percentage of each member since election to the House or Senate. With the voting records are brief descriptions of the issues—what the vote was about and its importance to union members and the nation.

Issues of prime importance to labor are the first 10 votes in the House and the first 11 votes in the Senate. In the tabulations they are the votes listed to the left of the rules.

MAJOR ISSUES IN THE HOUSE

1. Plant Closing Protections I

Over the last decade, no-notice plant closings in this country have occurred with alarming frequency. Each year over two million American workers lose their jobs in shutdowns and permanent layoffs. These economic catastrophes affect not only large industrial cities but small towns and rural areas. Every economic region and economic section has been hit; even the highly touted computer and service sectors have been plagued by plant shutdowns and lost jobs.

In 1987, a plant closing amendment was added to the Senate version of the House-passed trade bill, thanks to the hard work of Senators Howard Metzenbaum (D-Ohio) and Ted Kennedy (D-Mass.). The plant closing section provided workers at job sites of 100 or more employees with 60-day advance notice of a permanent plant closing. The amendment also established a unit in the U.S. Department of Labor to oversee federal and state programs assisting the re-employment of dislocated workers. Nearly \$1 billion was authorized, primarily for state delivery of training, education, job-search assistance and other services to help displaced workers.

As the House prepared to vote on the final conference report on the trade bill, President Reagan threatened to veto the entire package if the plant closing provision remained. During House consideration, Republican Minority Leader Bob Michel (Ill.) led a futile effort to eliminate the plant closing amendment. His motion was defeated, 167-253, on April 21.

For - Wrong Against - Right

2. Plant Closing Protections II

Making good on his threat, President Reagan vetoed the trade bill with its plant closing language. The Senate failed to override the veto. An explosion of public support for plant closing notification followed, fueled by effective grass-roots lobbying by

union members throughout the country. The Senate and House Democratic leadership then agreed on a strategy to resurrect the plant closing section as a separate bill.

On July 13, the House approved the plant closing bill by an overwhelming 286-136 vote. Because the margins in both the House and Senate were "veto-proof," President Reagan was forced to back off, allowing the bill to become law without his signature.

For - Right Against - Wrong

3. Trade I

For the last two decades, the AFL-CIO has repeatedly sounded the alarm about the evolving crisis in U.S. trade. With thousands of plants being padlocked, communities devastated, millions of jobs lost and the U.S. debt to foreign countries rising to \$424 billion, the 100th Congress finally began to come to grips with our trade imbalance. In 1987, both the House and the Senate adopted omnibus trade measures. The Senate version also contained a provision which required that workers, many of whom had been hurt by the trade crisis, must be given 60-day notice of a plant closing or massive layoff.

In 1988, Congress and the White House conducted a highly public battle over U.S. trade policy. Using veto threats as leverage, the White House targeted key labor-backed sections of the trade bill for removal. The most vehement opposition was reserved for the plant closing notification provision. In April, with the support of the AFL-CIO, the Democratic congressional leadership announced it would only approve a final trade conference agreement that included: an expanded trade adjustment assistance program; a mechanism to reduce the trade deficit by strengthening U.S. trade law; the inclusion of abuse of worker rights abroad as an "actionable" unfair trade practice, and the plant closing provision. Despite President Reagan's veto threat, on April 21 the House voted 312-107 to adopt the conference agreement. The Senate, however, failed to override the veto. Later, separate trade and plant closing bills were passed and enacted into law.

For - Right Against - Wrong



Trade bill strategy session—Speaker Wright confers with AFL-CIO President Lane Kirkland, chief lobbyist Bob McGlotten and Research Director Rudy Oswald.

4. Trade II— Veto Override

On May 24, President Ronald Reagan kept his promise and vetoed the omnibus trade bill, citing the plant closing provision as his principal objection. Although for many months the President had denounced the pro-worker provision, he toned down his veto message in response to public-opinion polls showing that 82% of the American people supported the provision. The House of Representatives, like the public, disagreed with his veto. Within hours, the House on May 24 overrode the veto by an overwhelming 308-113—20 votes more than the two-thirds majority needed.

For - Right Against - Wrong

5. Trade III—Textiles, Apparel and Shoe Imports

Another trade bill of major importance sought to regulate the influx of textile and shoe imports into the United States. Devastation of these industries over the last decade has been accompanied by an epidemic of plant shutdowns and over 300,000 lost jobs, despite 1974 international trade agreements to provide for the orderly growth of textile and apparel imports. Apparel imports have captured nearly 60% of the U.S. market.

In 1988, the Senate completed action on House-passed legislation backed by the AFL-CIO to force compliance with existing trade agreements for textiles while also providing relief for the import-stricken shoe industry. President Reagan had vetoed similar legislation in 1985. Under the new bill, imports of 185 categories of textiles and apparel would be limited to a one percent annual increase, based on 1986 levels. Meanwhile, imports on 15

categories of shoes would be frozen at 1986 levels. As he had done in 1985, President Reagan again vetoed the legislation. By a 272-152 vote on October 4, the House failed to achieve the two-thirds vote needed to override the President's veto.

For - Right Against - Wrong

6. Foreign Ownership in the United States

One result of the massive trade and federal budget deficits is the increase in U.S. dependence on foreign capital to pay for these debts. Because of the Reagan Administration's policy of devaluing the dollar, U.S. assets have become comparatively cheap—an easy target for foreign takeovers. The result has been an influx of foreign capital into the U.S. to buy not only government securities, but real estate, agricultural land and manufacturing facilities as well. Today, foreign ownership in the U.S. is conservatively estimated at about \$1.5 trillion.

As foreign investors continue to spend billions of dollars to buy America's productive assets, there is a danger that technology and jobs could move offshore at an accelerated pace. Unfortunately, unlike other governments, the U.S. has no reliable, comprehensive and detailed information about the ever-changing picture of foreign ownership. Thus it is difficult to formulate sound national economic policies to address this situation.

As a result, the AFL-CIO supported legislation introduced by Rep. John Bryant (D-Tex.) to require major foreign investors to report their participation in ownership of U.S. assets, and to make this information available to the Executive Branch, the Congress and other authorized individuals. Despite the Reagan Administration's opposition, the House approved the Bryant amendment by a 250-170 vote on October 5.

For - Right Against - Wrong



House Speaker Jim Wright leads off press conference at Democratic National Committee headquarters on plant closing bill.



The People v. Reagan's veto: Textile and shoe workers rally on Capitol steps to save American jobs.

7. Fair Wages for Construction Workers

The 1931 Davis-Bacon Act insures that workers on federally financed construction projects will be paid at wage rates that prevail in their community. For over 50 years, this law has assured that contractors who uphold community labor standards have a fair chance to compete for government projects without being underbid by firms using cut-rate labor. It has also protected the government and taxpayers from fly-by-night operators seeking to win federal contracts by paying wages too low to attract competent craftsmen. During debate on a Department of Defense authorization bill, Rep. Charles Stenholm (D-Tex.) offered an amendment designed to undercut a labor-backed proposal to modernize the Davis-Bacon law. Stenholm's amendment would have exempted 80% of all military construction from the fair-wage standards of the Davis-Bacon law by increasing the \$2,000 contract exemption threshold to \$250,000. By a narrow 204-210 vote on May 3, the House rejected his proposal.

For - Wrong Against - Right

8. Polygraph Protection

The use of polygraphs and other so-called "lie detectors" has reached shocking levels in America's workplaces. Workers in the private sector are subjected to more than two million "lie detector" tests every year, four times the number given just 10 years ago. According to estimates, at least 200,000

Americans lose jobs or are denied employment opportunities solely because of inaccurate "lie detector" tests. Because of the continuing widespread abuse of polygraphs and their lack of reliability, 22 states have limited or outlawed polygraph examinations in the workplace. But a state-by-state approach to banning these devices would take years to accomplish. Thus a uniform federal prohibition is needed.

To put an end to this abuse, the House agreed to the conference report on labor-backed legislation to outlaw the use of polygraphs in most private-sector workplaces. The bipartisan legislation—originally sponsored by Reps. Pat Williams (D-Mont.) and Jim Jeffords (R-Vt.)—was approved by a 251-120 vote on June 1. The bill was later signed into law.

For - Right Against - Wrong

9. PATCO

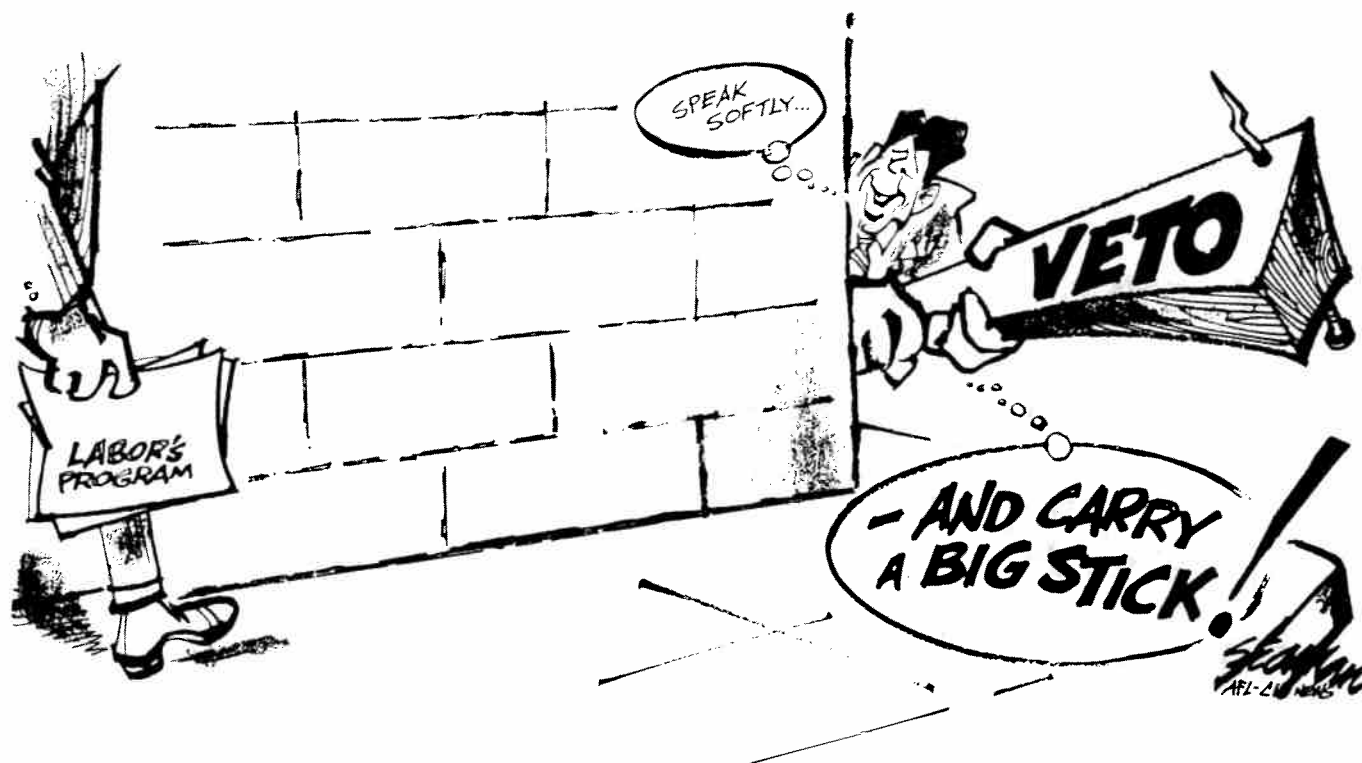
Five years ago, the Professional Air Traffic Controllers Organization (PATCO) went on strike to protest working conditions which posed a safety hazard to the public. President Reagan responded by firing the 11,000 striking PATCO members and making their re-employment by the Federal Aviation Administration (FAA) nearly impossible. As a result, today's federal air traffic control workforce is too small to meet the ever-increasing demands of managing air travel in the nation's skies. For example, in 1986 the FAA hired only 30 new controllers—far below its goal of 482.

With growing public concern over airline safety, members of Congress renewed efforts to force the Department of Transportation to rehire fired PATCO workers. Fearing that the FAA would fail to begin the needed rehiring voluntarily, Representatives Guy Molinari (R-N.Y.) and Frank Annunzio (D-Ill.) sponsored a labor-backed bill directing the FAA to rehire 1,000 of PATCO strikers in 1988-89. By a 234-180 vote on March 30, the legislation was approved.

For - Right Against - Wrong



AFL-CIO Secretary-Treasurer Tom Donahue gives AFL-CIO viewpoint on child care before Congressional hearings.



10. Pay Equity for Women

Equal pay for work of comparable value is a major goal of the American labor movement. In recent years, labor's concern for pay equity has led to legislative and judicial efforts to assure that women workers are not the victims of wage discrimination caused by pay classification plans which fail to compensate them adequately for their level of skills. In the House, the AFL-CIO backed legislation sponsored by Rep. Mary Rose Oakar (D-Ohio) to advance the cause of pay equity for women at the federal level. The Oakar bill provided for an independent study to determine whether the federal government salary structure undervalued jobs that are filled primarily by women. If a determination was made that pay discrimination existed, the measure required development of legislative proposals to close the pay gaps. Pay reductions in predominantly male occupations were specifically prohibited. The key vote on the Oakar bill came on final passage of the legislation which was approved by a 302-98 vote on September 29.

For - Right Against - Wrong

11. Civil Rights

In 1984, a U.S. Supreme Court decision threatened 20 years of federal civil rights law. In a case involving Grove City College in Pennsylvania, the Court ruled that an educational institution could still receive federal funds even though one of its departments or other activities engaged in discrimination. The Court's Grove City decision drastically narrowed the protection provided by Title IX of the Education Amendments of 1972. Since the three other federal laws that prohibit discrimination

by recipients of federal funds use the same terminology, the Justice Department immediately announced that it would apply the Grove City decision to weaken the enforcement of those laws.

In passing these civil rights laws, Congress intended that the entire agency or institution receiving the federal dollars be deterred from discrimination, not simply the program or activity receiving the federal funds. The Grove City ruling made congressional action necessary to restore to the four civil rights laws their original meaning. In 1984, conservative opposition in the Republican-controlled Senate blocked passage; in 1985-86, conservatives in the House succeeded in loading onto the bill controversial, non-germane amendments which prevented final House action. Finally, in 1988, Congress passed the Civil Rights Restoration Act—only to have it vetoed by President Reagan. In the showdown with the Reagan Administration over whether or not this nation would continue its commitment to civil rights, Congress reaffirmed its intent, overriding the veto with a House vote of 292-133 on March 22.

For - Right Against - Wrong

12. Fair Housing

The freedom to obtain the housing of one's choice has proven to be the most elusive civil rights objective. The 1968 Fair Housing Act prohibited discrimination in the sale, rental, marketing, financing and related activities affecting housing. However, the law did not include an effective enforcement mechanism. The only real option left to those encountering housing discrimination was to spend years in court and thousands of dollars on a private law suit. For most low- and middle-income victims, this is no real option at all.

After 20 years, it was clear that the law simply was not working. Evidence of persistent, unlawful housing discrimination is abundant. According to statistics compiled by the Department of Housing and Urban Development (HUD), black families seeking to purchase a home have a 48% chance of encountering discrimination; in some parts of the country, Hispanic-Americans have a 96% chance of being discriminated against. The record of discrimination against the disabled, families with children, women, and Asian-Americans is just as dismal.

As a result, the AFL-CIO strongly supported legislation to strengthen fair housing laws by instituting strong enforcement procedures and stiff penalties for housing discrimination. The labor-backed bill was passed by the House by an overwhelming 326-23 vote on June 29.

For - Right Against - Wrong

13. Fighting Racism in South Africa

Since 1958, the AFL-CIO has repeatedly expressed its outrage in Congress, international forums and elsewhere over the South African government's longstanding racist policy of apartheid. Under this system, black South Africans—who comprise nearly 75% of the nation's population—endure a strictly enforced policy of racial discrimination and segregation that denies them basic human rights. For trade unionists in South Africa, apartheid can be particularly vicious, denying workers the freedom of association necessary to improve wages and working conditions.

In 1986, the AFL-CIO backed the passage of legislation to impose a series of economic sanctions

on South Africa in order to pressure that government to move toward reform and the elimination of apartheid. Two years later, it was apparent that the Anti-Apartheid Act of 1986 was not successful, due in part to a lack of enforcement by the Reagan Administration. In the meantime, the South African government has continued to ban, disrupt and infiltrate union meetings and jail union leaders, often without bringing charges against them. Legislation strongly supported by the AFL-CIO to put more pressure on that government by prohibiting nearly all U.S. trade and investment in South Africa passed the House 244-132 on August 11.

For - Right Against - Wrong

14. Catastrophic Health Insurance

The AFL-CIO has long supported legislation to give elderly Americans necessary relief from the overwhelming medical costs resulting from acute or chronic illness. Because Medicare covered few of these expenses, this type of catastrophic illness meant possible financial ruin for elderly and disabled citizens. In 1987, the House and Senate passed legislation to expand Medicare coverage to protect against catastrophic and long-term illnesses. Under the legislation, Medicare beneficiaries will be eligible for unlimited free hospitalization after payment of an annual deductible, coverage for physicians' bills over \$1,400 a year, and a drug benefit to help with the costs of outpatient prescription drugs in excess of \$600 a year. On May 25, a House-Senate conference committee unanimously approved a final version of the bill, and on June 2 the House voted 376-23 to adopt the measure.

For - Right Against - Wrong

MAJOR ISSUES IN THE SENATE

1. Plant Closing Protections

Over the last decade, no-notice plant closings in the country have occurred with alarming frequency. Each year over two million American workers lose their jobs in shutdowns and permanent layoffs. These economic catastrophes affect not only large industrial cities but small towns and rural areas, as well. Every economic region and economic sector have been hit; even the highly touted computer and service industries have been plagued by plant shutdowns and lost jobs.

In 1987, a plant closing amendment was added to the Senate version of the House-passed trade bill, thanks to the hard work of Senators Howard Metzenbaum (D-Ohio) and Ted Kennedy (D-Mass.). The plant closing section provided workers at job sites of 100 or more employees with 60-day advance notice of a permanent plant closing. The amendment also established a unit in the U.S. Department of Labor to oversee federal and state programs assisting the re-employment of dislocated workers. Nearly \$1 billion was authorized, primarily for state delivery of training, education, job-search assistance and other services to help displaced workers.

President Reagan made good on his threat to veto the omnibus trade bill because of the plant closing provision and the Senate failed to override the veto. Immediately, the Democratic leadership agreed on a strategy to resurrect the plant closing legislation and to pass it as a separate bill. Amid an explosion of public support for the plant closing bill and with the help of effective grass-roots lobbying by union members throughout the country, the Senate—by an overwhelming 72-23 vote on July 6—passed the measure. Because the margins in both the House and Senate were “veto-proof,” President Reagan was forced to back off, allowing the bill to become law without his signature.

For - Right Against - Wrong



This AFL-CIO newspaper ad was part of a national multi-media campaign to enhance public support for the plant closing bill.

2. Trade I

On May 24, President Reagan vetoed the long-awaited omnibus trade bill. As his major objection, he cited the plant closing provision. Despite the fact that 82% of the American public supported the provision as a matter of simple fairness, the Reagan Administration lobbied many Republican Senators into treating this as a party-line issue. The 61-37 vote, on June 8, fell short of the two-thirds needed for an override.

For - Right Against - Wrong



Senate Democratic Majority Leader Bob Byrd—a major force on behalf of the workers' legislative agenda in the Senate—gave up his leadership post at the end of the 100th Congress. Here Byrd confers with AFL-CIO President Lane Kirkland, Legislative Director Bob McGlotten and Research Director Rudy Oswald.

3. Trade II - Apparel and Shoe Imports

Another trade bill of major importance was legislation to regulate the influx of textile and shoe imports into the United States. Devastation of this industry over the last decade has been accompanied by an epidemic of plant shutdowns and over 300,000 lost jobs, despite 1974 international trade agreements to provide for the orderly growth of textile and apparel imports. Today, apparel and shoe imports account for nearly 60% and 80% respectively of the U.S. market.

The House-passed legislation, backed by the AFL-CIO, would have forced compliance with existing trade agreements for textiles, while also providing relief for the import-stricken shoe industry. President Reagan had vetoed similar legislation in 1985. Under the 1987 version, imports of 185 categories of textiles and apparel would be limited to a one percent annual increase, based on 1986 levels. Despite strong Reagan Administration opposition and a lobbying blitz by retail associations, the Senate passed its version of the textile bill on September 9 by a 57-32 vote. President Reagan later vetoed the bill. The veto override effort failed.

For - Right Against - Wrong

4. Trade III - Buy American

The nation's security would be at risk if the logistical needs of our military could not be supplied by our own domestic manufacturing firms. The AFL-CIO has traditionally supported legislation requiring the armed forces to buy American-made goods. While considering the Defense Authorization bill, the Senate Armed Services Committee agreed to an amendment to erode "Buy American" protections. Promoted by Sen. Phil Gramm (R-Tex.), this proposal would have allowed the purchase of foreign-made goods if a 10% savings could be shown over the cost of buying U.S. goods and if the country of origin were not more restrictive in military procurement than the U.S. This provision failed to take into consideration that most of our so-called trading partners subsidize their manufacturers in order to gain access to lucrative U.S. government contracts.

Recognizing how easily the committee language could be used by foreign producers to further decimate our strategic industries, Sen. John Heinz (R-Pa.) offered an amendment during Senate floor debate to restore the "Buy American" safeguards. On May 12, by a 32-64 margin, the Senate voted against a motion by Sen. Gramm to table the Heinz amendment, which was later adopted by a voice vote.

For tabling - Wrong Against tabling - Right

5. Trade IV - Export of Jobs

The U.S. Overseas Private Investment Corporation (OPIC) is a taxpayer-financed government bureau that insures U.S. corporate investment abroad against losses from political and other risks. The AFL-CIO has consistently opposed continuation of OPIC because it encourages U.S. firms to invest in other countries, draining this country of much-needed investment revenue and resulting in the loss of U.S. jobs and production capabilities.

During 1988 Senate debate on a foreign aid appropriations bill, Sen. Howard Metzenbaum (D-Ohio) offered a labor-backed amendment to restrict the job-exporting operations of OPIC. His amendment would have prohibited OPIC from insuring any project that produces exports to the U.S. of goods directly competitive with U.S. products. This prohibition would not apply to countries with annual per capita incomes of \$984 or less. On a tabling motion by Sen. Terry Sanford (D-N.C.), the Metzenbaum proposal was defeated by a 72-23 vote on September 30.

For tabling - Wrong Against tabling - Right

6. Polygraph Protection

The use of polygraphs reached shocking levels in the American workplace by the 1980s. Workers in the private sector are subjected to more than two million "lie detector" tests every year, four times the number given just ten years ago. According to estimates, at least 200,000 Americans lose jobs or are denied employment opportunities solely because of inaccurate "lie detector" tests. Because of the continuing widespread abuse of polygraphs and their lack of reliability, 22 states have limited or outlawed polygraph examinations in the workplace. But a state-by-state approach to banning these devices would have taken years to accomplish. Thus a uniform federal prohibition was needed.

To put an end to this abuse of workers' rights, the AFL-CIO supported House-passed, bipartisan legislation sponsored by Sen. Ted Kennedy (D-Mass.), outlawing the use of polygraphs in most private sector workplaces. When the bill came to the Senate floor, opponents led by Sen. Phil Gramm (R-Tex.) attempted to sidetrack the legislation by substituting an amendment to continue to allow employers to administer polygraphs under guidelines established in 1984 by the Department of Defense. By a 57-35 vote on March 2, the Senate agreed to a tabling motion by Sen. Kennedy to block the Gramm amendment. The legislation was later signed into law.

For tabling - Right Against tabling - Wrong

To protect working parents, the AFL-CIO supported legislation to provide a national leave policy allowing up to 10 weeks of job-protected, unpaid time off for workers to meet parental responsibilities to deal with serious health problems affecting themselves or their family. This would have included, for example, the birth of a newborn or the adoption of a child. When the bill, originally introduced by Senator Chris Dodd (D-Conn.), was brought to the Senate floor, conservative Republicans led the charge against this pro-family legislation. Democratic Majority Leader Robert Byrd (W.Va.) tried in vain to stop the filibuster led by Republican Minority Leader Robert Dole (Kan.). Byrd's motion to invoke cloture was defeated on October 6 by a 50-46 vote—10 short of the 60 votes needed to invoke cloture.

For cloture - Right Against cloture - Wrong



Family Issues—Senator Ted Kennedy (D-Mass.) along with Senators Barbara Mikulski (D-Md.) and John Heinz (R-Pa.) make a pitch for child care and family leave.

10. Pay Equity for Women

Equal pay for work of comparable value is a major goal of the American labor movement. In recent years, labor's concern for pay equity has led to legislative and judicial efforts to assure that women workers are not the victims of wage discrimination caused by pay classification plans which fail to compensate them adequately for their level of skills. In the Senate, the AFL-CIO backed legislation sponsored by Senators Alan Cranston (D-Calif.) and Dan Evans (R-Wash.) to advance the cause of pay equity for women at the federal level. Their bill provided for an independent study to determine

whether the federal government salary structure undervalued jobs that are filled primarily by women. If such discrimination existed, the measure required development of legislative proposals to close the pay gaps. Pay reductions in predominantly male occupations were specifically prohibited.

The key vote on the Cranston-Evans proposal came on a carefully orchestrated parliamentary measure. With time running out in the Senate, Democratic Majority Leader Robert Byrd (W.Va.) allowed Senators Cranston and Evans to offer their bill as an amendment to an unrelated tax bill. However, in order not to open the door to a host of other unrelated amendments that might delay or doom the tax bill, they moved to first table their own amendment and then to withdraw it. This would thus guarantee a recorded vote in the Senate on Pay Equity. By a 72-14 vote on October 7, the Senate defeated the tabling motion and the amendment was withdrawn.

For tabling - Wrong Against tabling - Right

11. Union Busting by Federal Law

In 1988, the National Right-to-Work Committee renewed its attack on basic labor rights by pushing legislation to return to the days when the federal government policed strikes and busted unions for the benefit of employers. This was the intent of an amendment introduced by Sen. Strom Thurmond (R-S.C.) to the plant closing bill. Thurmond's amendment would have repealed a Supreme Court decision relating to the federal anti-extortion law—the Hobbs Act—and applied its severe civil and criminal penalties to picket line disturbances.

The AFL-CIO strongly opposed the Thurmond amendment—which had been rejected by the Republican-controlled Senate in 1986—because there are so few strikes, and incidents of picket line trouble are even rarer. Furthermore, such incidents, when they occur, are adequately covered by state or local laws and their enforcement agencies. Thus no union member or official is immune if he or she commits illegal acts during a labor dispute. Thurmond's anti-worker proposal was defeated when the Senate agreed by a 60-27 vote on June 24 to a tabling motion offered by Sen. Howard Metzenbaum (D-Ohio).

For tabling - Right Against tabling - Wrong

12. Civil Rights

In 1984, a U.S. Supreme Court issued a decision which threatened 20 years of federal civil rights law. In a case involving Grove City College in Pennsylvania, the Court ruled that an education institution could still receive federal funds, even if one of its departments or activities engaged in discrimination. The Court's Grove City decision drastically narrowed the protection provided by Title IX of the Education Amendments of 1972. Since the

three other federal laws that prohibit discrimination by recipients of federal funds use the same terminology, the Justice Department immediately announced that it would apply the Grove City decision to weaken the enforcement of those laws.

In passing these civil rights laws, Congress intended that the entire agency or institution receiving the federal dollars be deterred from discrimination, not simply the program or activity receiving the federal funds. The Grove City ruling made congressional action necessary to restore to the four civil rights laws their original meaning. In 1984, conservative opposition in the Republican-controlled Senate blocked passage; in 1985-86, conservatives in the House succeeded in loading onto the bill controversial, non-germane amendments which prevented final House action.

Finally, in 1988, Congress passed the Civil Rights Restoration Act—only to have it vetoed by President Reagan. In the showdown with the Reagan Administration over whether or not this nation would continue its commitment to civil rights, Congress reaffirmed its intent. The Senate voted 73-24 to override the veto on March 22.

For - Right Against - Wrong

13. Catastrophic Health Insurance

In 1987, the House and Senate both passed legislation to expand Medicare coverage to protect against catastrophic and long-term illnesses. Under the Medicare system, the elderly or disabled who had long hospital stays, very large doctor bills, big outpatient drug payments or who went into nursing homes for long-term care, were financially drained by bills for tens of thousands of dollars which Medicare would not pay. To help these Medicare beneficiaries who face possible financial ruin from catastrophic illnesses, the new legislation expanded coverage to include unlimited free hospitalization after payment of an annual deductible, payment for physicians' bills over \$1,400 a year, and a drug

benefit to help with the costs of outpatient prescription drugs in excess of \$600 a year. On May 25, a House-Senate conference committee unanimously approved a final version of the bill. On June 8, the Senate voted 86-11 to adopt the AFL-CIO-supported conference agreement.

For - Right Against - Wrong

14. Welfare Reform

Under the Reagan Administration, severe cuts in the nation's welfare program have driven millions of poor families even deeper into poverty. In 1979, Aid to Families with Dependent Children (AFDC) and other programs were able to lift 22 percent of the poor over the poverty threshold; by 1987 that figure had declined to nine percent.

In 1987, the House passed an AFL-CIO-supported welfare reform measure that sought to redesign welfare programs so that recipient families could become self-supporting through the use of work programs with adequate support services—such as child care, medical leave and other social services. Benefits were improved and states were instructed not to encourage the break-up of families by denying benefits to two-parent families where both parents were unemployed.

During 1988 Senate consideration of the welfare reform bill, Senate Minority Leader Robert Dole (Kan.) introduced an amendment severely weakening the bill. The Dole amendment required that one parent in a two-parent family receiving welfare participate in a non-profit, public-sector workfare program. The amendment failed to include the protections of the House bill which required equal pay and equal benefits protections and prohibited the displacement of currently-employed workers. On June 16, Senator Daniel Moynihan (D-N.Y.) introduced a motion to table, and thus defeat, the Dole amendment. The labor-supported motion was rejected by a 41-54 vote.

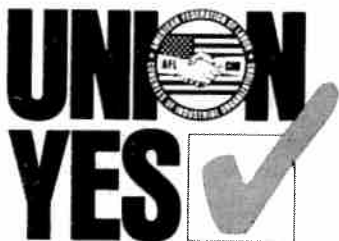
For tabling - Right Against tabling - Wrong

AFL-CIO

Department of Legislation

815 16th Street, N.W. Room 309

Washington, D.C. 20006



HOW YOUR SENATORS VOTED

	1	2	3	4	5	6	7	8	9	10	11	Total Labor Votes	Civil Rights	Health Care	Welfare Reform	Cumulative Voting Record	Cumulative Right Percentage	
ALABAMA																		
Heflin (D)	R	R	R	R	R	R	R	R	R	R	R	192	R	R	R	192	61	Hecht (R)
Shelby (D)	R	R	R	R	R	R	R	R	R	R	R	18	R	R	R	18	79	Reid (D)
ALASKA																		
Markowski (R)	A	W	W	W	W	W	W	W	W	W	W	98	R	R	W	98	24	Rudman (R)
Stevens (R)	R	W	W	W	W	W	W	W	W	W	W	119	R	R	W	119	43	Humphrey (R)
ARIZONA																		
DeConcini (D)	R	R	R	R	R	R	R	R	R	R	R	115	R	R	W	115	64	Bradley (D)
McCaig (R)	R	W	W	W	W	W	W	W	W	W	W	70	R	R	W	70	17	Leutenberg (D)
ARKANSAS																		
Bumpers (D)	R	R	R	R	R	R	R	R	R	R	R	104	R	R	W	104	66	Domenech (R)
Pryor (D)	R	R	R	R	R	R	R	R	R	R	R	101	R	R	R	101	60	Blagman (D)
CALIFORNIA																		
Cranston (D)	R	W	W	W	W	W	W	W	W	W	W	253	R	R	R	253	91	Moyrhan (D)
Wilson (R)	W	W	W	W	W	W	W	W	W	W	W	12	R	R	W	12	15	D'Amato (R)
COLORADO																		
Wirth (D)	R	R	W	W	W	R	R	R	R	R	R	78	R	R	R	78	83	Sanford (D)
Armstrong (R)	W	W	W	W	W	R	W	W	W	W	W	4	R	W	W	4	2	Holms (R)
CONNECTICUT																		
Dodd (D)	R	R	R	R	R	R	R	R	R	R	R	117	R	R	R	117	94	Burdick (D)
Weicker (R)	R	R	R	R	R	R	R	R	R	R	R	177	R	R	R	177	66	Conrad (D)
DELAWARE																		
Biden (D)	A	A	R	A	W	A	A	R	R	R	R	104	A	A	A	104	81	Glenn (D)
Roth (R)	R	R	R	W	W	W	W	R	R	R	R	10	W	W	W	10	20	Metzenbaum (D)
FLORIDA																		
Chiles (D)	R	R	W	W	W	W	W	R	A	R	R	112	R	A	R	112	55	Boren (D)
Graham (D)	R	R	W	W	W	W	W	R	R	R	R	10	R	R	R	10	83	Nickles (R)
GEORGIA																		
Nunn (D)	R	R	R	W	W	W	W	R	W	A	R	112	R	R	W	112	41	Hasfield (R)
Fowler (D)	R	R	R	R	W	W	W	R	R	R	R	71	R	R	R	71	88	Packwood (R)
HAWAII																		
Inouye (D)	R	R	R	R	W	A	R	R	R	R	R	100	R	R	R	100	89	Holm (R)
Matsunaga (D)	R	R	R	A	W	R	R	R	R	R	R	10	R	R	R	10	85	Specter (R)
IDAHO																		
	R	R	R	R	W	R	R	R	R	R	R	100	R	R	R	100	66	
	R	R	R	R	W	R	R	R	R	R	R	10	R	R	R	10	70	
NEVADA																		
Hecht (R)	A	W	A	A	W	W	W	A	W	R	W	10	W	R	A	10	77	
Reid (D)	R	R	R	R	R	R	R	R	R	R	A	10	R	R	W	10	91	
NEW HAMPSHIRE																		
Rudman (R)	W	W	R	R	W	W	W	W	W	W	W	105	R	R	W	105	19	
Humphrey (R)	W	W	W	W	W	W	W	W	W	W	W	118	W	W	W	118	6	
NEW JERSEY																		
Bradley (D)	R	R	W	W	W	R	A	A	R	R	R	105	R	R	R	105	86	
Leutenberg (D)	R	R	R	R	R	R	R	R	R	R	R	105	R	R	R	105	95	
NEW MEXICO																		
Domenech (R)	W	W	A	R	W	R	W	W	W	R	R	105	R	R	W	105	23	
Blagman (D)	R	R	A	W	W	R	W	R	R	R	R	105	R	R	R	105	84	
NEW YORK																		
Moyrhan (D)	R	R	R	R	W	R	R	R	R	R	R	105	R	R	R	105	92	
D'Amato (R)	R	W	R	R	W	R	W	W	W	R	R	105	R	R	W	105	46	
NORTH CAROLINA																		
Sanford (D)	R	R	R	R	R	R	R	R	R	R	R	105	R	R	R	105	87	
Holms (R)	A	W	R	R	R	R	W	W	W	A	W	105	W	W	W	105	8	
NORTH DAKOTA																		
Burdick (D)	R	R	R	R	R	R	R	R	R	R	R	105	R	R	R	105	86	
Conrad (D)	R	R	R	R	R	R	R	R	R	R	R	105	R	R	R	105	92	
OHIO																		
Glenn (D)	R	R	W	W	W	R	R	R	R	R	R	105	R	R	R	105	81	
Metzenbaum (D)	R	R	A	R	R	R	R	R	R	R	R	105	R	R	R	105	94	
OKLAHOMA																		
Boren (D)	R	R	R	R	W	W	W	W	W	R	A	105	R	R	W	105	41	
Nickles (R)	W	R	W	W	W	W	W	W	W	W	W	105	W	W	W	105	3	
OREGON																		
Hasfield (R)	R	W	A	W	W	R	R	R	W	R	R	105	R	R	W	105	51	
Packwood (R)	R	R	W	W	W	R	R	R	W	R	R	105	R	R	W	105	46	
PENNSYLVANIA																		
Holm (R)	R	R	R	R	W	A	R	R	R	R	R	105	R	R	W	105	66	
Specter (R)	R	A	R	R	W	R	R	R	R	R	R	105	R	R	A	105	70	
RHODE ISLAND																		
	R	R	R	R	W	A	R	R	R	R	R	105	R	R	W	105	66	
	R	R	R	R	W	A	R	R	R	R	R	105	R	R	A	105	70	

[illegible]

Key to Symbols

R. **Yoted Right** as was paired. **Blot** as was paired.
W. **Yoted Wrong** or was paired **Wrong**.
A. **Absent** and not paired or voted **Present**.
Number before each name shows congressional district.

1. Bosco (D)
2. Herger (R)
3. Matsui (D)
4. Fazio (D)
5. Pelosi (D)
6. Boxer (D)
7. Miller, G. (D)
8. DeFuria (D)
9. Stark (D)
10. Edwards, D. (R)
11. Lantos (D)
12. Kennedy (R)
13. Mineta (D)

1. Schroeder (D)
2. Skaggs (D)
3. Campbell (D)
4. Brown, H. (R)
5. Hefley (R)
6. Schaefer (R)

[illegible]

HOUSE VOTES (cont.)

CONNECTICUT

1. Kennedy (D)
2. Goldenson (D)
3. Morrison (D)
4. Shays (R)
5. Rowland, J.C. (R)
6. Johnson (R)

DELAWARE

- AL. Carper (D)

FLORIDA

1. Hutto (D)
2. Grant (D)
3. Bennett (D)
4. Chappell (D)
5. McCollum (R)
6. McKay (D)
7. Gibbons (D)
8. Young, C. (R)
9. Billbrink (R)
10. Ireland (D)
11. Nelson (D)
12. Lewis, T. (R)
13. Mack (D)
14. Mica (D)
15. Shaw (R)
16. Smith, L. (D)
17. Lehman, W. (D)
18. Pepper (D)
19. Fasset (D)

GEORGIA

1. Thomas, L. (D)
2. Hatcher (D)
3. Ray (D)
4. Swindall (R)
5. Lewis (D)
6. Gingrich (R)
7. Darden (D)
8. Rowland, J.R. (D)
9. Jenkins (D)
10. Barnard (D)

HAWAII

1. Sali (R)
2. Akaka (D)

IDAHO

1. Craig (R)
2. Stalling (D)

ILLINOIS

1. Hayes (D)
2. Savage (D)
3. Russo (D)
4. Davis (R)
5. Lipinski (D)
6. Hyde (R)
7. Collins (D)
8. Rostenkowski (D)
9. Yates (D)
10. Porter (R)
11. Annunzio (D)
12. Crane, P. (R)
13. Fawell (R)
14. Hastert (R)
15. Madigan (R)
16. Martin, L. (R)
17. Evers, L. (D)

	1	2	3	4	5	6	7	8	9	10	Total Labor Votes	Civil Rights	Fair Housing	Apartheid	Health Care	Cumulative Right Percentage
Plant Closings I	R	R	R	R	R	R	R	R	R	R	100	R	R	R	R	90
Plant Closings II	R	R	R	R	R	R	R	R	R	R	119	R	R	R	R	96
Trade I-Reform	R	R	R	R	R	R	R	R	R	R	84	R	R	R	R	94
Trade II-Veto	R	R	R	R	R	R	R	R	R	R	16	R	R	R	R	70
Trade III-Textile	R	R	R	R	R	R	R	R	R	R	31	R	R	R	R	51
Foreign Ownership	R	R	R	R	R	R	R	R	R	R	49	R	R	R	R	54
Davis-Bacon	R	R	R	R	R	R	R	R	R	R	100	R	R	R	R	90
Polygraphs	R	R	R	R	R	R	R	R	R	R	119	R	R	R	R	96
PATCO	R	R	R	R	R	R	R	R	R	R	84	R	R	R	R	94
Pay Equity	R	R	R	R	R	R	R	R	R	R	16	R	R	R	R	70

NEW JERSEY

1. Florio (D)
2. Hughes (D)
3. VACANCY
4. Smith, C. (R)
5. Rookena (R)
6. Dwyer (D)
7. Rinaldo (R)
8. Roe (D)
9. Torricelli (D)
10. Rodino (D)
11. Gallo (R)
12. Courter (R)
13. Saxton (R)
14. Guarini (D)

NEW MEXICO

1. Lujan (R)
2. Steen (R)
3. Richardson (D)

NEW YORK

1. Hochbrueckner (D)
2. Downey (D)
3. Mirazak (D)
4. Lent (R)
5. McGrath (R)
6. Fiske (D)
7. Ackerman (D)
8. Scherer (D)
9. Mantion (D)
10. Schumer (D)
11. Towns (D)
12. Owens (D)
13. Solari (R)
14. Molinari (R)
15. Green (R)
16. Rangel (D)
17. Weiss (D)
18. Garcia (D)
19. VACANCY
20. DiGuardi (R)
21. Fish (R)
22. Gilman (R)
23. Stratton (D)
24. Solomon (R)
25. Boehlert (R)
26. Martin, D. (R)
27. Wortley (R)
28. McHugh (D)
29. Horton (R)
30. Slaughter (D)
31. Kemp (R)
32. LaFalce (D)
33. Nowak (D)
34. Houghton (R)

NORTH CAROLINA

1. Jones, W. (D)
2. Valentine (D)
3. Lancaster (D)
4. Price (D)
5. Neal (D)
6. Coble (D)
7. Rose (D)
8. Hefner (D)
9. McMillan (R)
10. Ballenger (R)
11. Clatter (D)

NORTH DAKOTA

1. Evers, L. (D)

	1	2	3	4	5	6	7	8	9	10	Total Labor Votes	Civil Rights	Fair Housing	Apartheid	Health Care	Cumulative Right Percentage
Plant Closings I	R	R	R	R	R	R	R	R	R	R	100	R	R	R	R	90
Plant Closings II	R	R	R	R	R	R	R	R	R	R	119	R	R	R	R	96
Trade I-Reform	R	R	R	R	R	R	R	R	R	R	84	R	R	R	R	94
Trade II-Veto	R	R	R	R	R	R	R	R	R	R	16	R	R	R	R	70
Trade III-Textile	R	R	R	R	R	R	R	R	R	R	31	R	R	R	R	51
Foreign Ownership	R	R	R	R	R	R	R	R	R	R	49	R	R	R	R	54
Davis-Bacon	R	R	R	R	R	R	R	R	R	R	100	R	R	R	R	90
Polygraphs	R	R	R	R	R	R	R	R	R	R	119	R	R	R	R	96
PATCO	R	R	R	R	R	R	R	R	R	R	84	R	R	R	R	94
Pay Equity	R	R	R	R	R	R	R	R	R	R	16	R	R	R	R	70

	1	2	3	4	5	6	7	8	9	10	Total Labor Votes	Civil Rights	Fair Housing	Apartheid	Health Care	Cumulative Right Percentage
Plant Closings I	R	R	R	R	R	R	R	R	R	R	100	R	R	R	R	90
Plant Closings II	R	R	R	R	R	R	R	R	R	R	119	R	R	R	R	96
Trade I-Reform	R	R	R	R	R	R	R	R	R	R	84	R	R	R	R	94
Trade II-Veto	R	R	R	R	R	R	R	R	R	R	16	R	R	R	R	70
Trade III-Textile	R	R	R	R	R	R	R	R	R	R	31	R	R	R	R	51
Foreign Ownership	R	R	R	R	R	R	R	R	R	R	49	R	R	R	R	54
Davis-Bacon	R	R	R	R	R	R	R	R	R	R	100	R	R	R	R	90
Polygraphs	R	R	R	R	R	R	R	R	R	R	119	R	R	R	R	96
PATCO	R	R	R	R	R	R	R	R	R	R	84	R	R	R	R	94
Pay Equity	R	R	R	R	R	R	R	R	R	R	16	R	R	R	R	70

